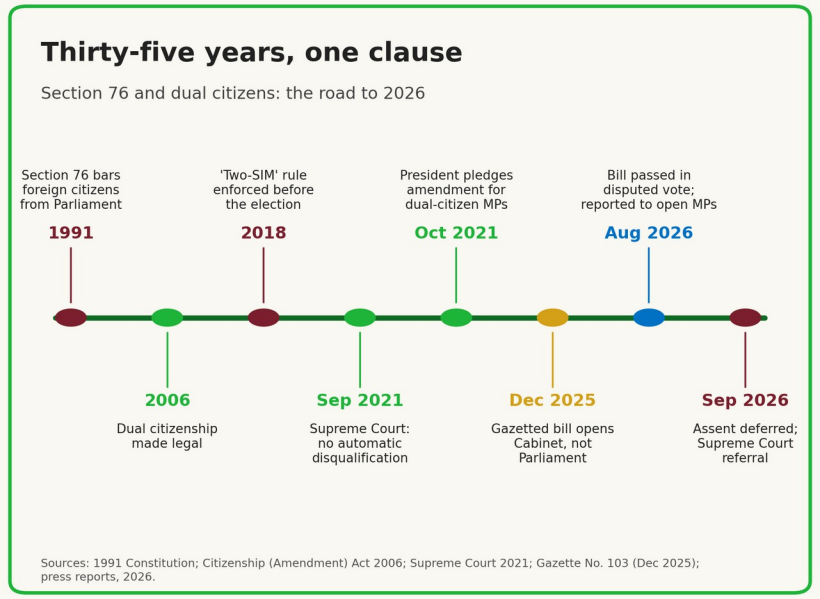
SLPP 2028 DOCTRINE SERIES · NO. 11 · OCTOBER 2026

The Two-SIM Question

The Citizenship Doctrine: dual citizens, Parliament and the diaspora's place in Sierra Leone's constitutional reform



Dual citizenship has been legal since 2006. Whether dual citizens may sit in Parliament is still not settled in 2026.

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Why This Doctrine, Why Now

In 2018, Sierra Leone added a new word to its political vocabulary. A "two-SIM" was a citizen carrying two passports, the way many of us carry two phone lines. Weeks before that year's elections, the word became a weapon: aspirants with foreign citizenship were told they could not

stand for Parliament, and the eligibility of presidential candidates was challenged in court.

Eight years later, the question is back, this time inside the Constitution of Sierra Leone (Amendment) Bill. The amendment that Parliament declared passed on 10 August 2026 is widely reported to open parliamentary seats to Sierra Leoneans who hold a second citizenship, while keeping them out of

the top offices of state. If that is right, it would end a contradiction that has sat in our law for twenty years.

Status note: as of 14 October 2026, President Julius Maada Bio (SLPP, Sierra Leone) has deferred his assent to the amendment and referred constitutional questions about its passage to the Supreme Court, where related cases brought by opposition MPs and the All People's Congress

(APC, Sierra Leone) are also pending. The final text of the bill as passed has not been published. Nothing in this doctrine should be read as describing settled law.

Doctrine No. 10, The Arithmetic of Representation, examined how votes become seats. This installment asks a prior question: who is allowed to hold a seat at all? I should declare an interest at the outset. I am a Sierra

Leonean living in New York, and the reform discussed here affects people like me directly. That is a reason for more care, not less. Consistent with this series, the SLPP government's own record on this issue is examined with the same scrutiny as everyone else's.

What Section 76 Says

The rule sits in Section 76(1)(a) of the 1991 Constitution. In its original form, it disqualifies from election to Parliament anyone who is a naturalised citizen of Sierra Leone, or who is a citizen of another country, having become such a citizen voluntarily or being under a declaration of allegiance to that country.

Two features matter. First, the bar is aimed at voluntarily acquired foreign citizenship. A Sierra Leonean born abroad who holds a second citizenship by birth is treated differently from a Sierra Leonean born in Bo who later naturalised in Britain or the United States. Commentators have long pointed to the oddity this creates: a child born abroad may be eligible for Parliament while a parent born at home is not.

Second, Parliament is the gateway to other offices. The Constitution ties the qualifications for ministerial appointment to the qualifications for Parliament, which is why every proposal discussed below has had to deal with ministers as well as MPs. Section 75 adds a separate rule for citizens by registration, who need twenty-five years of continuous residence or public service before they can stand.

A Contradiction Twenty Years Old

In 2006, Parliament amended the Citizenship Act to allow Sierra Leoneans to hold dual nationality. Section 76 was never rewritten to match. For twelve years, the contradiction slept. Dual citizens served as ministers and MPs under governments of both parties, and

critics later alleged that several sitting ministers under President Ernest Bai Koroma (APC, Sierra Leone) held foreign passports.

Then, in the run-up to the March 2018 elections, the ruling APC government invoked Section 76(1). The Attorney General informed parliamentary aspirants with dual citizenship that they were not qualified. The issue engulfed three presidential

candidates. Kandeh Yumkella (NGC, Sierra Leone), whose eligibility was challenged in court, had renounced his United States citizenship in 2017 and asked publicly why the rule was being enforced against candidates while dual-citizen ministers remained in government. Many observers saw the timing as political. Whatever the motive, the episode exposed a law that said one thing in the Citizenship Act and another in the Constitution.

The Court Speaks: 2021

The challenge to Yumkella's eligibility, David Fornah v Alhaji Dr Kandeh Kolleh Yumkella, finally reached judgment in the Supreme Court on 3 September 2021. The court found that Yumkella was not a dual citizen when he stood, and it criticised the action as

a waste of the court's time. But the judgments went further.

Justice Glenna Thompson reasoned that the 2006 Act was made under Parliament's constitutional power to legislate on citizenship, and that the mischief Section 76(1)(a) was aimed at no longer existed: what was once unlawful was now lawful. On that reasoning, holding a second citizenship no longer automatically

disqualified a Sierra Leonean by birth from standing for Parliament. The Sierra Leone Telegraph reported that the other sitting justices agreed there was no automatic disqualification by virtue only of dual citizenship. Other analyses read the separate judgments, including that of Justice Sengu Koroma, more narrowly. Both judgments are published by the Judiciary of Sierra Leone, and anyone

relying on the case should read them in full.

This matters for how we tell the story. It is not accurate to say flatly that dual citizens were barred from Parliament until 2026. The more defensible statement is that the text of Section 76 still reads as a bar, while the Supreme Court in 2021 held that dual citizenship alone does not trigger it. A constitution that needs a court

judgment to be read correctly is a constitution that should be rewritten.

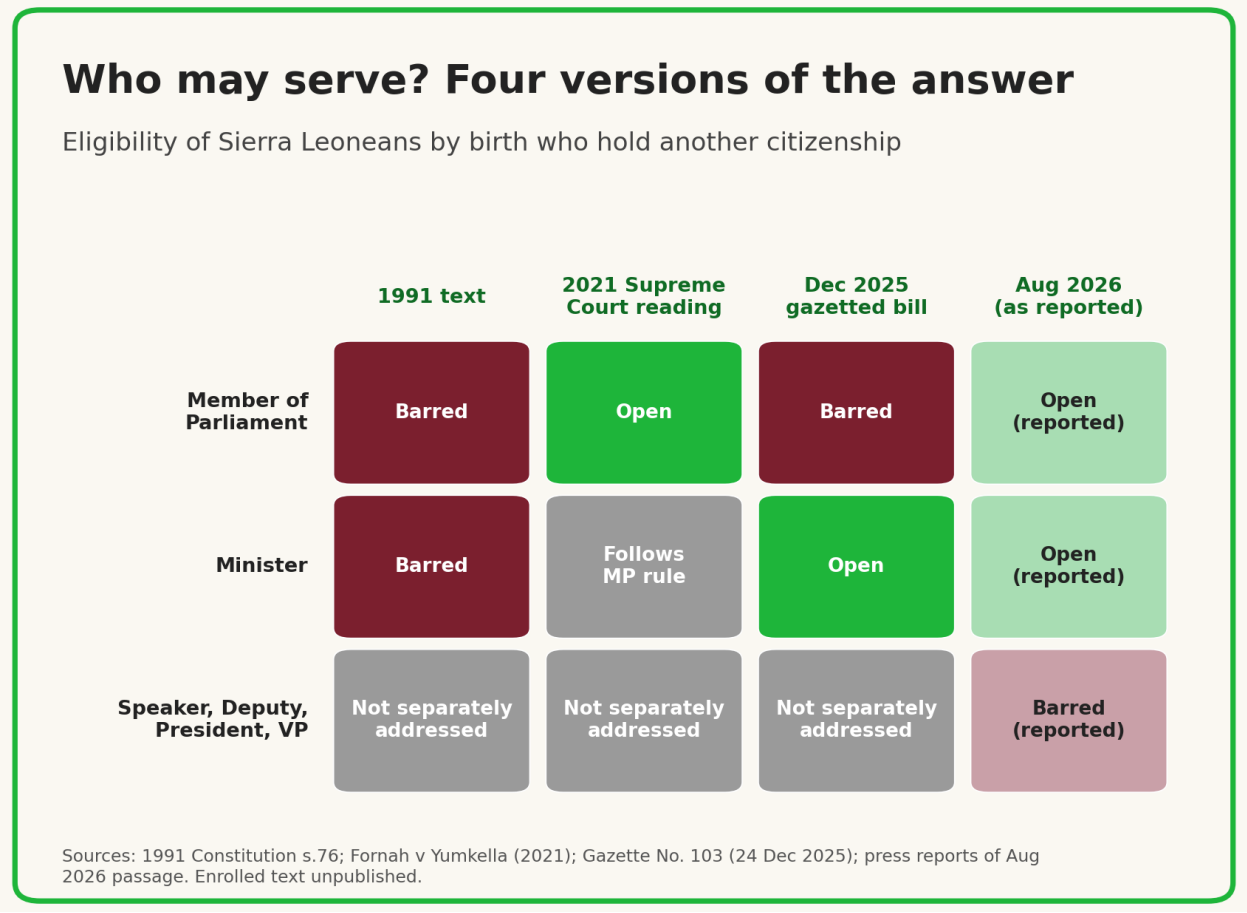
The Promise and the Draft

Seven weeks after the judgment, in October 2021, President Bio announced that his government had approved and authorised the Attorney General to lay an amendment that would allow dual citizens to be

qualified for election as Members of Parliament. The pledge was explicit, and it was about Parliament.

The Constitution of Sierra Leone (Amendment) Bill was published in the Gazette on 24 December 2025. Its Clause 14 rewrites Section 76(1)(a). The new text keeps the disqualification for naturalised citizens and for those who voluntarily hold another citizenship, then adds a

proviso: a citizen of Sierra Leone other than by naturalisation who also holds another citizenship may be appointed a Minister of Government.



The gazetted bill opened Cabinet expressly. Reports of the August 2026 passage say Parliament went further.

Read on its face, the gazetted draft opened Cabinet but not Parliament. It was narrower than the 2021 pledge. Supporters of the government should be the first to say so, because the gap between promise and draft is exactly what critics will quote.

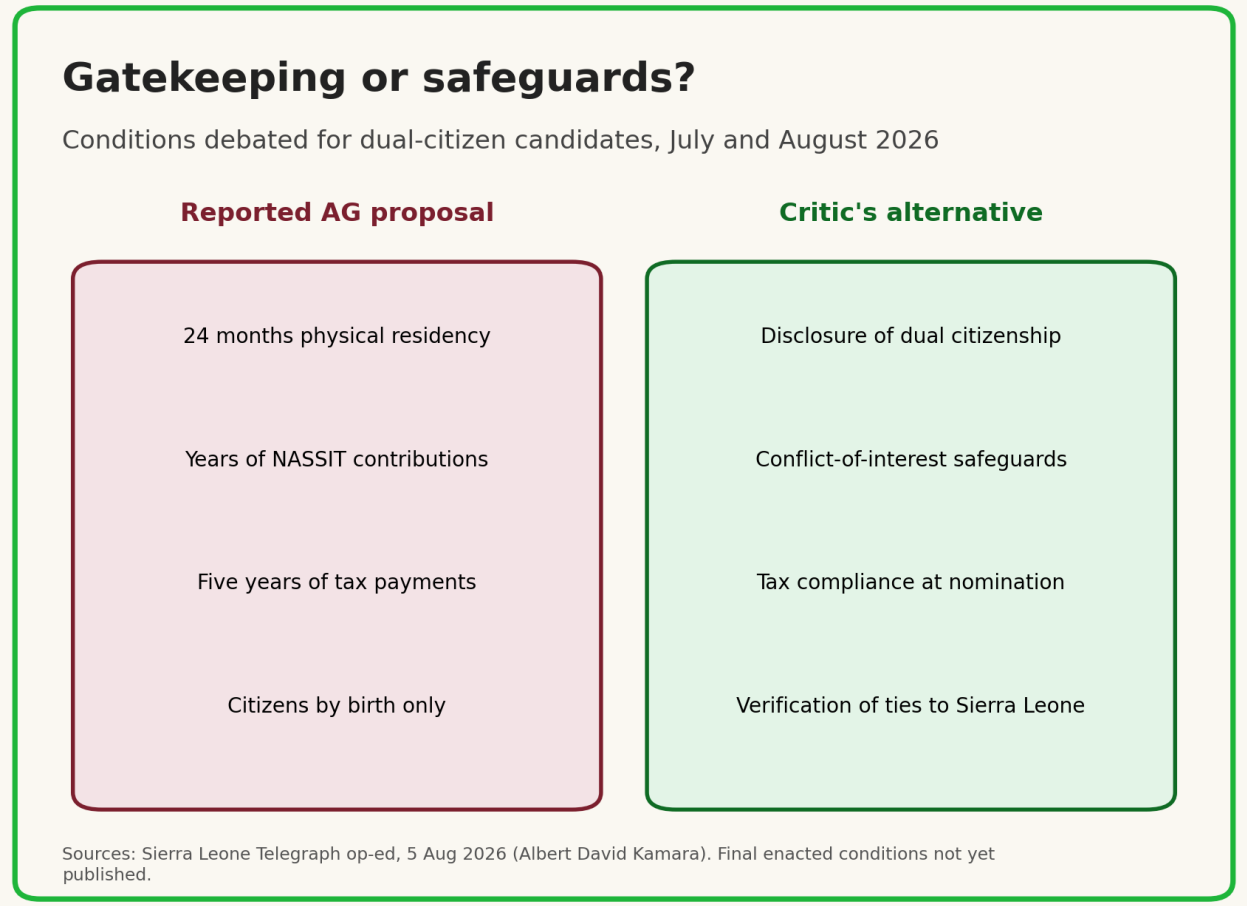
In the Chamber: What Changed

The bill did not stay as gazetted. On 28 July 2026, Attorney General and Minister of Justice Alpha Sesay, who piloted the bill through Parliament for the SLPP government, delivered a ministerial statement after its first reading. He told the House that after gazetting, further submissions from

citizens and institutions had been reviewed by a technical committee with representatives of both the government and the APC. He said the bill drew on the Cowan Constitutional Review Committee report and the Tripartite Committee's consensus recommendations.

During the debate, the Attorney General put forward a route for dual citizens to sit in Parliament, with

conditions. According to a critical op-ed by Albert David Kamara in the Sierra Leone Telegraph, the conditions proposed were 24 months of physical residency, years of NASSIT contributions, five years of tax payments, and a restriction to citizens by birth. The same writer reported that some ruling-party MPs defended restrictions on national security grounds.



The conditions reported in the debate, set against the alternatives proposed by one of their critics.

The critique deserves a fair hearing. Its central argument is that a nation cannot welcome diaspora remittances while treating diaspora citizens as

political outsiders, and that executive-level security restrictions belong on executive offices, not a representative chamber. Its alternative conditions, disclosure, conflict-of-interest rules, tax compliance at nomination and proof of ties, are lighter but not empty.

A summary of the bill circulated during the 31 July sitting listed the dual-citizenship change as

disqualifying certain categories of dual citizens from the offices of President, Vice President and Speaker. After the 10 August sitting, several outlets, including Sierraloaded and the Rio Times, reported that the amended provisions would allow dual citizens to contest parliamentary seats and hold public office. One report noted that the APC, while opposing the threshold and proportional representation clauses, explicitly supports the 30

percent gender quota and the provisions allowing dual citizens to hold political office.

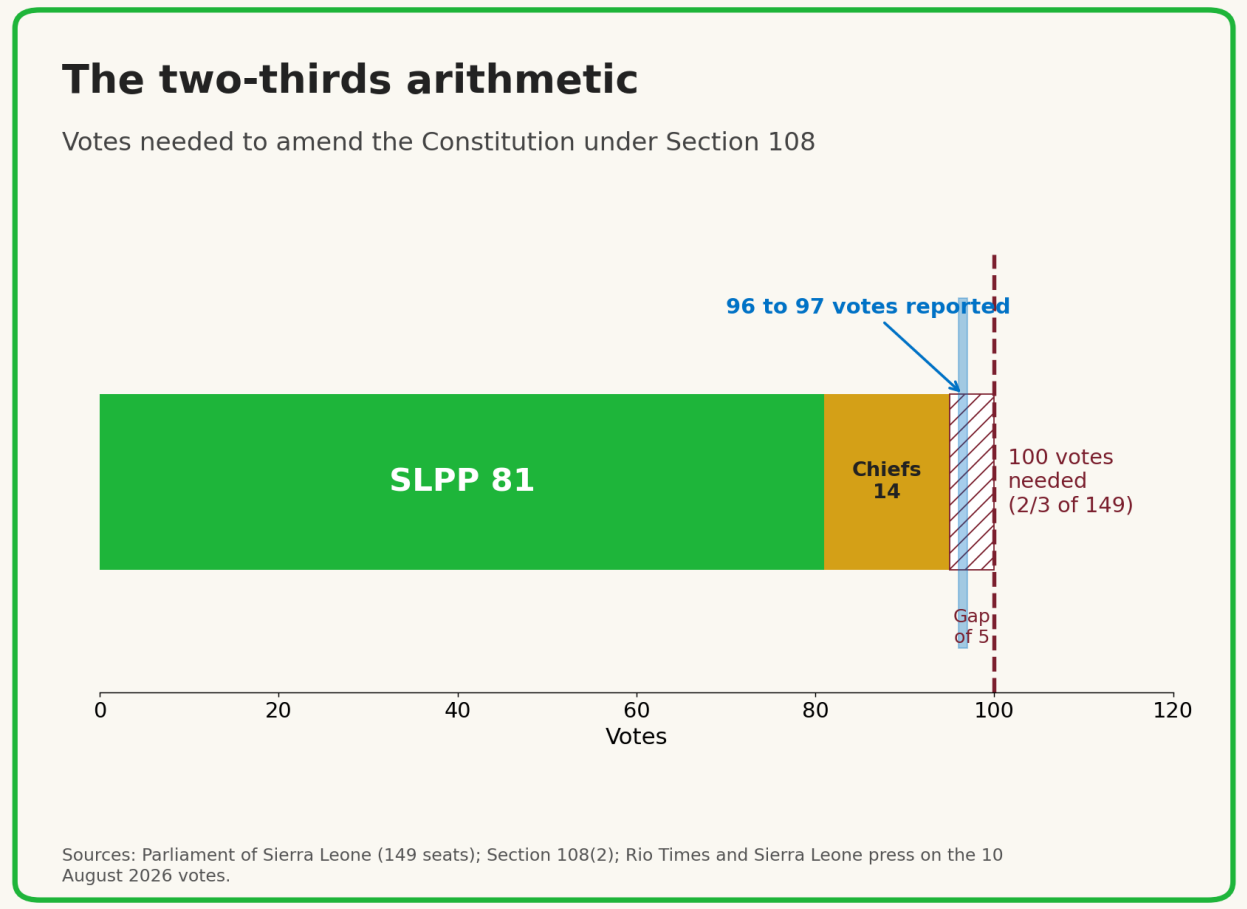
Two things remain unknown. The enrolled text of Section 76 as Parliament passed it has not been published, so we cannot quote the final wording. And we do not know which, if any, of the residency, NASSIT and tax conditions survived. Those details will decide whether the reform

opens Parliament to the diaspora or opens it only on paper.

The Vote, the Walkout and the Court

The dual-citizenship clause was not the controversial part of the bill. It travelled inside a package that also lowered the presidential threshold and entrenched proportional

representation, and it now shares that package's legal fate.



Section 108 requires two-thirds of Members of Parliament at second and third reading. On a 149-seat house that is 100 votes.

Section 108(2) requires that a constitutional amendment be supported at its second and third readings by not less than two-thirds of the Members of Parliament. With 149 members, that is at least 100 votes. The SLPP's 81 elected members and all 14 Paramount Chiefs together make 95. On 10 August, Speaker Segepoh Solomon Thomas ruled that the bill could be passed by a majority of members present and voting under

Section 91(1). The APC walked out, and contemporary reports put the votes in the range of 96 to 97.

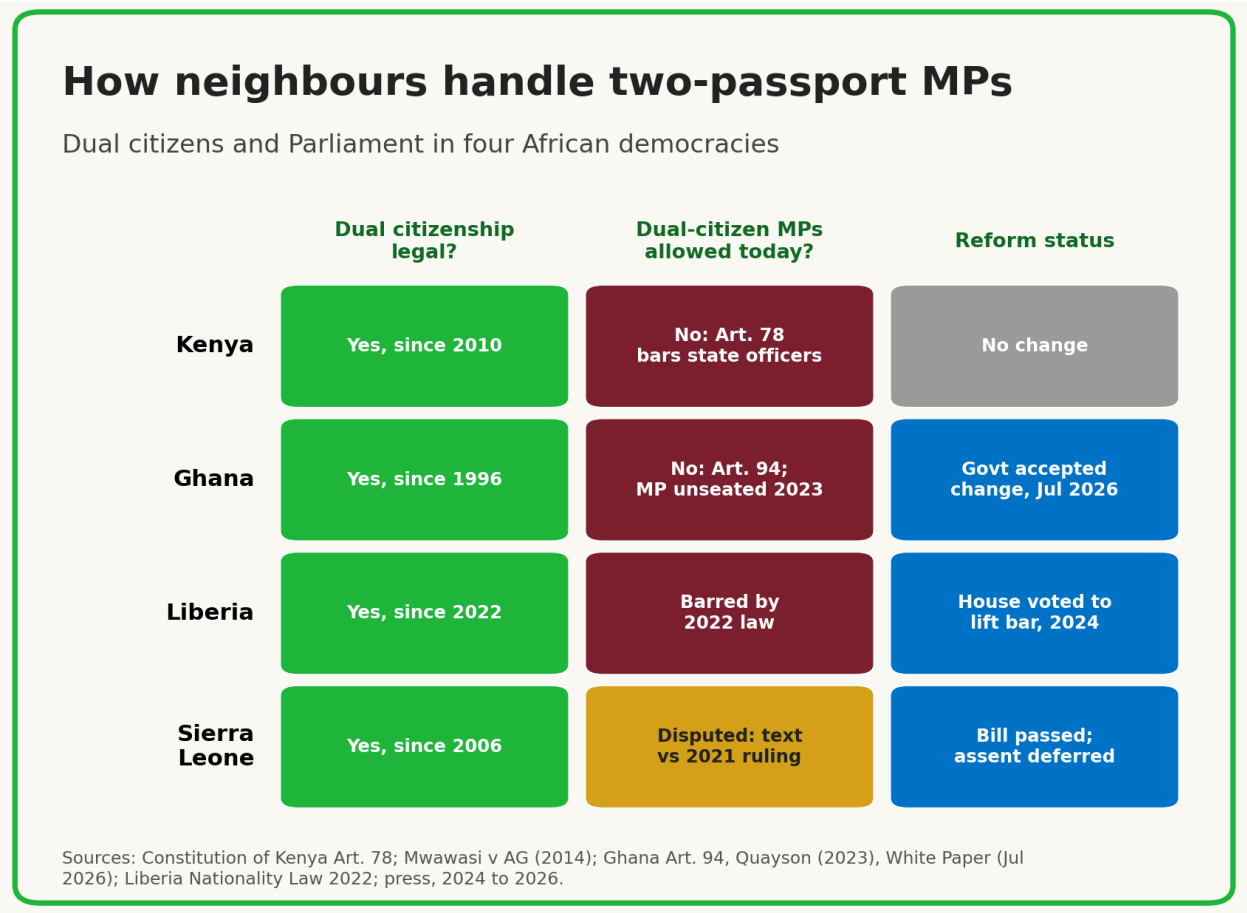
On 14 September, the presidency announced that President Bio would not sign until the Supreme Court had addressed the constitutional questions raised by a petition against the bill. Opposition MPs and the APC have filed their own cases. Separately, Attorney General Sesay has said the country

could hold a constitutional referendum before or alongside the 2028 elections.

For the diaspora, the lesson is uncomfortable. A clause with support on both sides of the House may fall with a package that does not have it. If the court finds the procedure defective, the dual-citizenship reform falls with everything else, and the

question returns to the text of 1991 and the judgments of 2021.

What Africa Is Doing



Allowing dual citizenship and allowing dual-citizen MPs are two different decisions. Most of our neighbours made the first long before the second.

Kenya: the firm bar

Kenya's 2010 Constitution protects dual citizenship for citizens by birth, but Article 78(2) provides that a State officer shall not hold dual citizenship, with exceptions only for judges, commission members and those who cannot opt out of a foreign nationality. Because MPs are State officers,

Kenya's High Court held in Mwawasi v Attorney General that a dual citizen cannot run for Parliament; the case went to the Court of Appeal in 2014. Kenya chose to welcome its diaspora's citizenship but not its candidacy.

Ghana: the bar, the case and the reversal

Ghana permitted dual citizenship in 1996, but Article 94(2)(a) disqualifies anyone who owes allegiance to

another country from Parliament. In May 2023, the Supreme Court unanimously ordered Parliament to remove James Gyakye Quayson (NDC, Ghana) as MP for Assin North because he had not renounced his Canadian citizenship when he filed his nomination; he won the by-election that followed. In 2026, Ghana moved toward change. President John Mahama (NDC, Ghana) has called the diaspora Ghana's "17th region", and

on 30 July 2026, Attorney General Dominic Ayine announced that the government had accepted the Constitutional Review Committee's recommendation that Ghanaians by birth with dual citizenship may contest parliamentary elections without renouncing, while the presidency and vice presidency remain closed. Weeks earlier, Ghana's Council of State had advised against a private member's amendment bill on the same subject,

which shows how contested the question remains even there.

Liberia: the conditional opening

Liberia legalised dual citizenship in 2022 but barred dual citizens from elective office unless they renounced their other citizenship at least one year before applying to contest. Critics, including the scholar Robtel Neajai Pailey, argued that the bar shielded political incumbents from

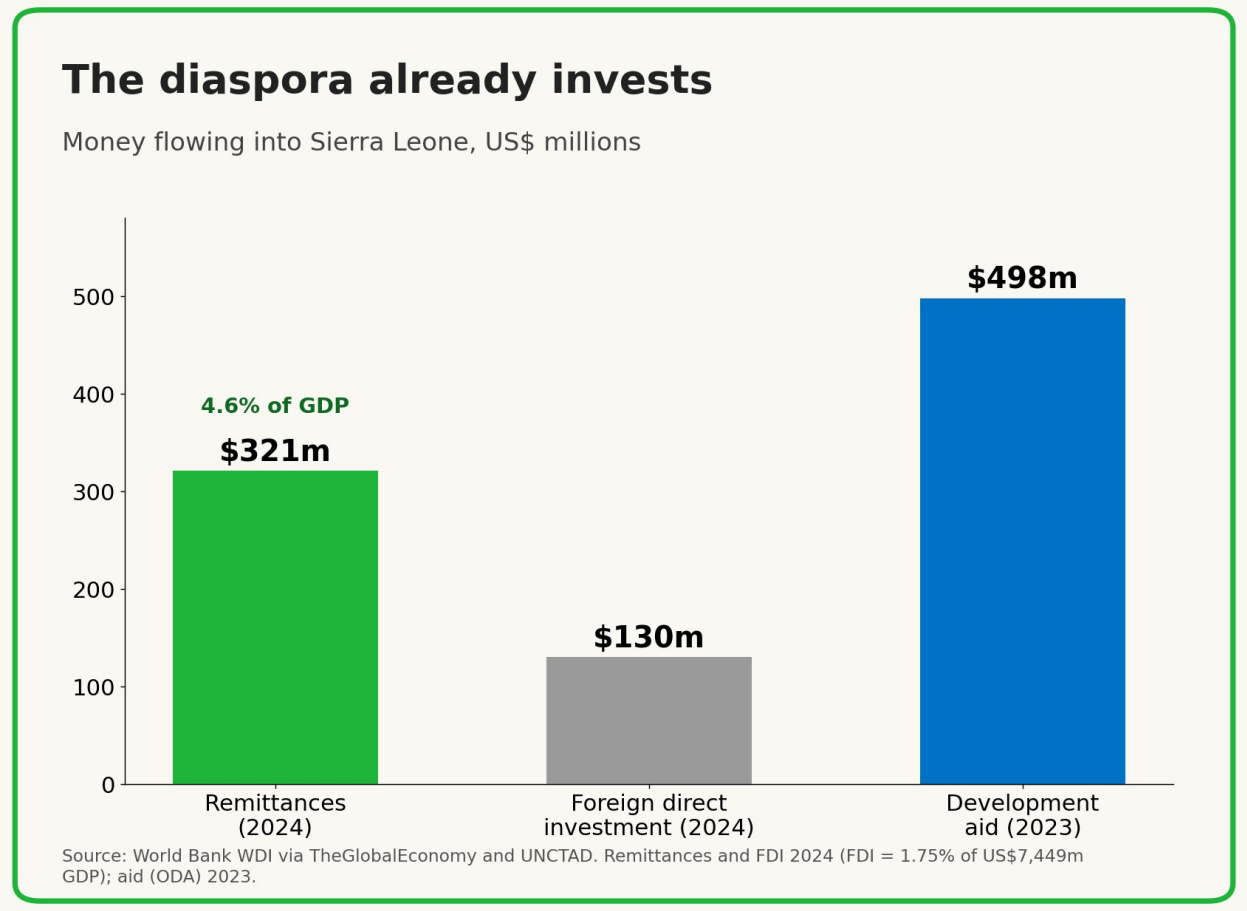
competition while doing little to protect sensitive appointed posts. In 2024, Liberia's House of Representatives approved amendments to remove the requirement; the final status of that reform should be confirmed before it is cited as law.

The pattern across the region is clear. Each country first accepted that its citizens abroad remain citizens, then

argued for years over whether they may represent those at home. Sierra Leone is now where Ghana is: the government has moved, the legal process has not finished, and the details will decide the outcome.

The Case For and Against

The case for



In 2024, personal remittances were more than double foreign direct investment.

The economic argument is strong. World Bank data show personal remittances to Sierra Leone of about US$321 million in 2024, roughly 4.6 percent of GDP and more than twice the value of foreign direct investment that year. Beyond money, the diaspora holds skills the country needs in medicine, engineering, law, finance and data.

The democratic argument is stronger still. Citizenship is the foundation of political rights. Sierra Leone has already decided that a citizen who acquires another passport remains a full citizen. Voters, not a blanket rule, should judge whether that citizen is committed enough to represent them. A diaspora candidate who is out of touch will lose; one who is trusted should be free to win.

And there is a fairness argument. The 2018 enforcement showed that a vague, rarely applied bar becomes a tool to be used selectively against opponents. A clear rule protects everyone, including the governing party when it is in opposition.

The case against

The concerns deserve respect, not dismissal. Allegiance is the first: some foreign citizenships carry legal duties,

including military service or taxation, and an MP sits on committees that see sensitive information. Representation is the second: an MP who lives abroad for most of the year cannot attend to constituents or to the daily work of Parliament. Accountability is the third: a legislator with a second home abroad has an exit that ordinary citizens do not. And there is an equity concern: a reform that mainly benefits a well-off diaspora could crowd out

home-based candidates who lack foreign earnings.

These concerns are why almost every country that opens Parliament to dual citizens keeps the presidency closed, and why conditions such as residency and disclosure keep returning to the debate. The disagreement is not really about whether there should be conditions. It is about whether the conditions are proportionate.

The Hard Questions

Is this reform for the diaspora's benefit or the country's? It should be judged by whether it improves representation at home. If dual-citizen MPs are elected and serve their constituents well, the country gains. If the reform becomes a route for absentee politicians, it will fail on its own terms.

Did the SLPP government keep its 2021 promise? Not in the gazetted draft, which opened Cabinet but not Parliament. The reported final version appears to go further, and the Attorney General argued the case in the chamber. But a promise kept with conditions that make it unusable is not fully kept. We should say so plainly, and judge the final text when it is published.

Are 24 months of residency and five years of tax payments reasonable? Some residency requirement is defensible for a working legislature. Two years, combined with years of NASSIT contributions, risks excluding exactly the professionals the reform claims to welcome. A shorter residency period before nomination, tax compliance at the point of nomination, and full

disclosure would meet the legitimate concerns with less exclusion.

Why should home-based citizens accept this? Because the rule would be the same for everyone born Sierra Leonean, and because the final decision stays with the voters. Under district proportional representation, it also stays with party members who rank the lists, which is why Doctrine

No. 9's case for member-ranked lists matters here too.

What happens if the Supreme Court strikes the bill down? Then the dual-citizenship clause should come back on its own, in a short amendment that both parties already say they support. A consensus clause should not be held hostage to contested ones.

The Doctrine: Eight Principles

Whatever the courts decide, these principles should guide the next version of Section 76, whether it comes through this bill, a stand-alone amendment or a referendum.

1. **One clear clause.** The Constitution itself should state who may stand for Parliament, so

that eligibility never again depends on reconciling a 1991 clause, a 2006 Act and a 2021 judgment.

2. **Citizens by birth may stand without renouncing.** A Sierra Leonean by birth who holds another citizenship should be eligible for Parliament and for ministerial office, as Ghana's government has now accepted.

3. **Keep the top offices closed.**

   The presidency, vice presidency, Speakership and Deputy Speakership may reasonably remain reserved for those who hold only Sierra Leonean citizenship.

4. **Proportionate conditions.**

   Prefer disclosure, tax compliance at nomination, and a short, verifiable residency period before

nomination over multi-year residency, contribution and tax histories.

5. **Full disclosure.** Every candidate and minister should declare all citizenships and allegiances on a public register, with false declaration a ground for disqualification.

6. **No selective enforcement.** Eligibility challenges should go to

a fast-track court process well before polling day, not to political offices weeks before an election.

7. **Publish the enrolled text.** The final wording of any amendment passed by Parliament should be published immediately, so citizens are not left to piece it together from press reports.

8. **Decouple consensus from controversy.** Where both parties

support a reform, it should be able to pass on its own merits rather than fall with contested provisions.

Conclusion

The two-SIM question is not really about passports. It is about whether Sierra Leone believes that citizenship carries the same rights wherever a citizen happens to live, and whether

the Constitution says so clearly enough that no government can bend it before an election.

On this question, the SLPP government made a promise in 2021, the Attorney General argued for change in Parliament in 2026, and the opposition says it supports the principle. That rare agreement should not be wasted in a procedural dispute. Write the rule clearly, keep the top

offices closed, set conditions that protect the country without shutting out its citizens, and let the voters decide the rest.

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Charts: author's compilation from the sources above. Cells marked "reported" rely on press accounts because the enrolled text has not been published.

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The Doctrine Series is published at

greenprofessionals.github.io.